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**IN THE FOURTH JUDICIAL DISTRICT COURT  
UTAH COUNTY, STATE OF UTAH**

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STATE OF UTAH,

Plaintiff,

v.

TYLER JAMES ROBINSON,

Defendant.

**NEWS MEDIA'S RESPONSE TO  
DEFENDANT'S OPPOSITIONS TO  
EMC ORDER FOR THE  
PRELIMINARY HEARING**

Case No. 251403576

Hon. Tony F. Graf, Jr.

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The News Media respectfully submits this Response to Defendant Tyler James Robinson's Oppositions to EMC Orders for the Preliminary Hearing (Still Photography Oppositions or Oppositions). (Dkt. 635, 642, 644.)

The Still Photography Oppositions challenge this Court's orders permitting still photography at the preliminary hearing. (Dkt. 633, 634, 641.) The Oppositions are nearly identical to Defendant's previously filed opposition, which challenged the Court's order

permitting livestreaming at the preliminary hearing. (Dkt. 623.) Accordingly, the News Media incorporates by reference its prior Response concerning EMC at the preliminary hearing. (Dkt. 637.) For the reasons set forth in that Response, the Still Photography Oppositions should be denied. Indeed, some of Defendant’s arguments—such as his concern about the dissemination of hearsay—are completely irrelevant with regard to still photography.

Nevertheless, there are two arguments worth addressing separately.

First, the Still Photography Opposition concerning Deseret News argues that the EMC request should be denied because Deseret News filed its EMC request on June 23, 2026, which is 13 days before the start of the preliminary hearing.<sup>1</sup> (Dkt. 642 at 1–2.) However, Defendant identifies no prejudice from this filing date. Nor could he—his arguments raised in that Opposition are identical to his previous arguments. (*Compare* Dkt. 642, *with* Dkt. 623, 635.)

Second, the Still Photography Opposition concerning the Associated Press (AP) challenges the briefing guidelines on the basis that AP submitted a timely EMC request on June 22, 2026, but the order granting that request was not available on the docket until June 24, 2026. (Dkt. 644 at 2.) Again, Defendant has demonstrated no prejudice, as his arguments concerning AP are identical to his prior arguments. Moreover, the AP order was on the docket more than 14 days before the requested hearing date (July 9). And in any event, the argument concerning the briefing guidelines provides no justification for denying EMC.

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<sup>1</sup> The Deseret News requested EMC for July 6, 8, and 10. (Dkt. 634.) So the request was 13 days before the July 6 hearing date, but more than 14 days before the other requested hearing dates.

RESPECTFULLY SUBMITTED this 25th day of June 2026.

**PARR BROWN GEE & LOVELESS**

/s/ David C. Reymann

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